Outlook

Re: [External] Next Steps: Meet and Confer Timing Following FAC

From Nicholas Ventura <nicholasaventura@hotmail.com>
Date Mon 5/18/2026 7:15 AM
To Nathan Chapman <nchapman@kcozlaw.com>
Cc Chad Williams <CWilliams@kcozlaw.com>; Jonathan Marvisi <jmarvisi@kcozlaw.com>

Ok. I will try again in a few weeks.

Good day,
Nicholas A. Ventura

From: Nathan Chapman <nchapman@kcozlaw.com>
Sent: Monday, May 18, 2026 7:08:51 AM
To: Nicholas Ventura <nicholasaventura@hotmail.com>
Cc: Chad Williams <CWilliams@kcozlaw.com>; Jonathan Marvisi <jmarvisi@kcozlaw.com>
Subject: RE: [External] Next Steps: Meet and Confer Timing Following FAC

Mr. Ventura,

Thank you for your email. Randstad's position remains unchanged. Support for Randstad's position is found directly in Judge Murillo's standing order, cited below.

Regards,

Nathan D. Chapman
KABAT CHAPMAN & OZMER LLP
Direct: (404) 400-7303
Email: nchapman@kcozlaw.com
www.kcozlaw.com

From: Nicholas Ventura <nicholasaventura@hotmail.com>
Sent: Monday, May 18, 2026 9:25 AM
To: Nathan Chapman <nchapman@kcozlaw.com>
Subject: Re: [External] Next Steps: Meet and Confer Timing Following FAC

Dear Mr. Chapman,

Thanks for your timely response. As noted after the MTD hearing, the attorney present evidently failed to communicate that the motion would not be heard. Denial is not a valid excuse, and any misunderstanding will be addressed on the record.

There will be plenty to address following my FAC filing—and progressively less with each subsequent MTD.

Your continued refusal to participate in a Rule 26(f) conference, coupled with your reliance on speculative assumptions about what the Court "would likely" do—and, if you recall, your attempt to compress this obligation into a two-minute call with Mr. Williams—reflects a pattern of conduct inconsistent with the level of professionalism expected in this forum. Accordingly, my party will proceed under C.D. Cal. L.R. 37-1.

Let me know if you change your position on stipulation, settlement, or any other matter. I recommend you prepare to turn back.

Regards,
Nicholas A. Ventura

From: Nathan Chapman <nchapman@kcozlaw.com>
Sent: Monday, May 18, 2026 3:01:32 AM
To: Nicholas Ventura <nicholasaventura@hotmail.com>
Cc: Chad Williams <CWilliams@kcozlaw.com>; Jonathan Marvisi <jmarvisi@kcozlaw.com>
Subject: RE: Next Steps: Meet and Confer Timing Following FAC

Mr. Ventura,

We will not agree to hold the 26(f) conference or conduct discovery prior to a decision on the motion to dismiss given that the Court would likely stay discovery upon a motion by Randstad. [D.E. 16 at 11.] Indeed, Randstad is not in possession of any discoverable information given that you were admittedly wronged by third-party criminal actors having no affiliation with Randstad, as you have admitted in court pleadings. Please drop Randstad from your lawsuit.

Regards,

Nathan D. Chapman
KABAT CHAPMAN & OZMER LLP
Direct: (404) 400-7303
Email: nchapman@kcozlaw.com
www.kcozlaw.com

From: Nicholas Ventura <nicholasaventura@hotmail.com>
Sent: Monday, May 18, 2026 3:08 AM
To: Jonathan Marvisi <jmarvisi@kcozlaw.com>
Cc: Nathan Chapman <nchapman@kcozlaw.com>
Subject: [External] Next Steps: Meet and Confer Timing Following FAC

Hi Mr. Marvisi and Mr. Chapman,

I'm proposing that we conduct the Rule 26(f) conference immediately after the First Amended Complaint is filed. Doing so allows us to initiate early discovery promptly — including subpoenas and interrogatories — and avoids losing valuable time at this stage.

Under Rule 26(d), discovery begins after the Rule 26(f) conference, and Rule 37 empowers the Court to compel the disclosures necessary to resolve factual disputes. The Ninth Circuit has emphasized that discovery is essential to resolving contested factual issues and that courts

must enforce it when cooperation breaks down. *Sali v. Corona Regional Medical Center*, 889 F.3d 623 (9th Cir. 2018). Likewise, California courts have reversed dismissals entered without allowing the parties a fair opportunity to develop the record. *Vaccaro v. Kaiman*, 63 Cal. App. 4th 761 (1998). Because the authority issues raised by Defendants are factual, not legal, dismissal at this stage would be premature.

Please confirm your position within three business days. Next Wednesday is the final date available for the meet and confer.

Two final updates:
>Jennifer Anne Higdon was found in connection with the Buccaneer Lounge in Sierra Madre, California
>Korn Ferry is likely going to be let out of the case due to weakest binding for RICO enterprise.

I will leave a voicemail later this week if I do not hear back and proceed to filing the FAC alone.

Regards,
Nicholas A. Ventura